

CONSTITUTIONAL AMENDMENTS

Article 368 • Procedure • 1st to 106th Amendment

Part XX of the Constitution | Amendment procedure borrowed from the Constitution of South Africa

- Headings & Definitions ● Explanations ● Highlighter = Key Facts 🎯 Exam Tip ✗ Common Mistake
🧠 Memory Trick

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WHAT IS A CONSTITUTIONAL AMENDMENT?

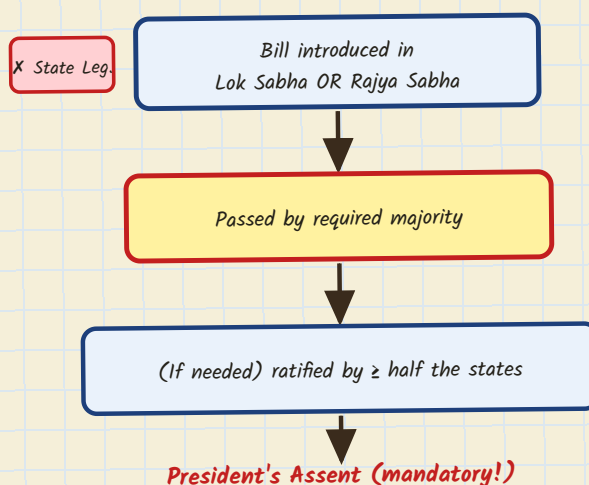
A constitutional amendment means changing, adding, deleting, or replacing something in our Constitution — the largest written constitution in the world. The State Legislature cannot do this; only the country's Parliament can. The bill can be introduced in either the Lok Sabha or the Rajya Sabha (never in a State Legislative Assembly or Council).



The entire procedure is laid out in **Part XX (Part 20)** of the Constitution, under **Article 368**. This procedure was borrowed from the Constitution of South Africa.



Fig 1: How a Constitutional Amendment Bill Moves



Three Unique Rules for a Constitution Amendment Bill

- **No joint sitting** — unlike ordinary bills, a Constitution Amendment Bill has no provision for a joint sitting of both Houses if there's a deadlock (joint sitting itself comes from **Article 108**, borrowed from Australia)
- **No prior Presidential recommendation** is required to introduce it — contrast this with a **Money Bill**, which does need the President's prior recommendation
- **President's assent is mandatory** — he cannot return it, cannot withhold assent, and cannot "pocket" it. This is the only type of bill where the President has **no veto power** at all

✗ Common Mistake

Don't mix up Money Bills and Constitution Amendment Bills — a **Money Bill** needs the President's **prior** recommendation before introduction; a **Constitution Amendment Bill** does not.

🎯 Exam Tip

Remember these three together: **No joint sitting + No prior recommendation + Mandatory Presidential assent** — classic 1-mark questions on Constitution Amendment Bills.

K. C. Wheare's Description

The scholar **K. C. Wheare**, who wrote extensive commentary on our Constitution's provisions, described India's federal structure as **"quasi-federal"**. In the same way, he described India's amending procedure as neither wholly rigid nor wholly flexible — i.e., **"partly rigid, partly flexible."**



🧠 Memory Trick

Quasi-federal (structure) + Partly rigid, partly flexible (amending procedure) — both phrases come from the same scholar, K. C. Wheare!



😞 Food for Thought

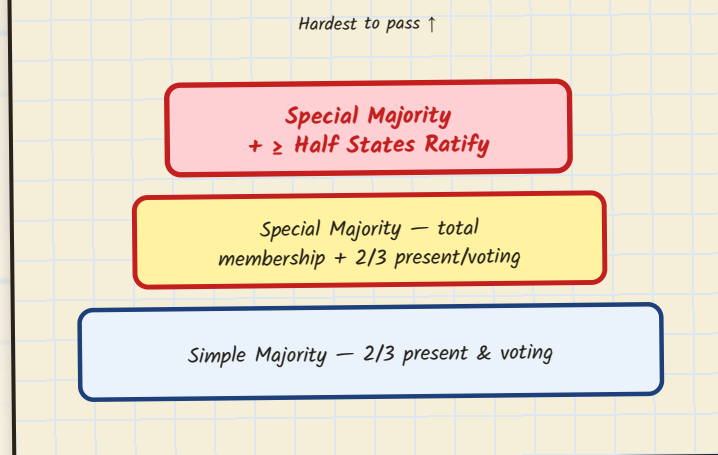
The lecture itself poses this as an open question: besides the Constitution Amendment Bill, is there another type of bill where joint sitting is also not allowed? Worth researching further!

SIMPLE, SPECIAL + SPECIAL+RATIFICATION MAJORITY

Article 368 covers **two** types of amendment: by **special majority**, and by **special majority plus ratification from the states**. There's also a **simple majority** route for some provisions — but that is not treated as an amendment "under Article 368" at all; these are called the **flexible parts** of the Constitution.

Majority Type	Definition (as taught)
Simple Majority	2/3 of members present and voting in the House — not counted as an Article 368 amendment
Special Majority	Majority of the total membership of the House, AND 2/3 of members present and voting — whichever number is higher must be achieved
Special Majority + Ratification	Special majority in Parliament + ratification by at least half the states (simple majority in each state legislature) — e.g. out of 28 states, at least 14 states

Fig 2: Climbing the Majority Ladder



Needs Special Majority

Needs Special Majority + State Ratification

Fundamental Rights

Election of the President (procedure)

Directive Principles (DPSP)

Supreme Court & High Courts

Seventh Schedule

Article 368 itself

Representation of States in Parliament

Needs only Simple Majority (not an Art 368 amendment): Second Schedule, Third Schedule, Parliament's own Rules of Procedure, provisions of Citizenship, creation or abolition of a Legislative Council, and any change under **Articles 2 and 3** (creating a new state, altering boundaries) — because **Article 4** says such changes are not considered an amendment under Article 368.



Exam Tip

Group the "ratification" list together: **Supreme/High Courts, Presidential election, Seventh Schedule, Article 368 itself, Representation of States** — all federal-structure-sensitive, hence states get a say.



Common Mistake

Don't assume Fundamental Rights or DPSP amendments need state ratification — they only need a **special majority**, no state involvement required.



Memory Trick

"Court-President-Schedule-368-Representation" — five things so central to India's federal structure that states must ratify any change to them.

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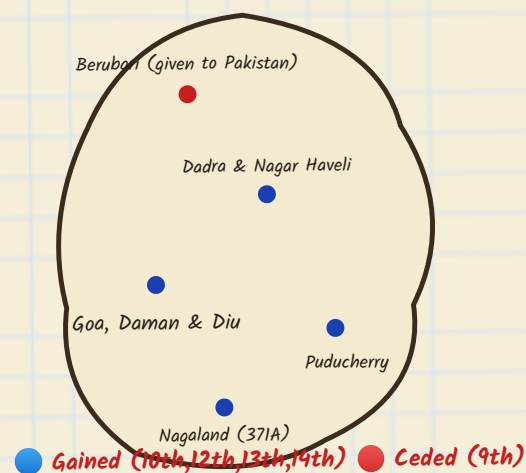
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EARLY AMENDMENTS — 1ST TO 14TH

Amendment	Key Change
1st (1951)	Added the Ninth Schedule , Article 15(4) and Article 19(3); added restrictions on Fundamental Rights to protect land-reform laws
5th	Empowered the President to prescribe a time limit for state legislatures to send their recommendation on an Article 3 bill (state name/boundary changes)
7th (1956)	Repealed Part VII ; ended the Part A/B/C/D state categories; created 14 states + 6 Union Territories ; allowed a common High Court and a common Governor for 2+ states
9th (1960)	Implemented the Nehru-Noon Agreement ; ceded the Berubari Union to Pakistan
10th	Incorporated Dadra & Nagar Haveli as a Union Territory
12th	Incorporated Goa, Daman & Diu as a Union Territory
13th (1962)	Gave Nagaland special status under Article 371A
14th	Incorporated Puducherry into the Indian Union; enabled Legislatures & Councils of Ministers for the UTs of Himachal, Manipur, Tripura, Goa, and Daman & Diu

 Fig 3: Territory Ceded vs Territory Gained



"The Portuguese were the first to come, and the last to leave India."



The Berubari Union Case (tap to expand) ▼

✗ Common Mistake

Acquiring territory (like Dadra & Nagar Haveli, Goa, Puducherry) only needs a **simple majority** under Article 4 — but **giving away** Indian territory (like Berubari) needs a full **constitutional amendment**. Don't treat the two as the same process!

🎯 Exam Tip

Goa, Dadra & Nagar Haveli, and Daman & Diu were ruled by the **Portuguese**; Puducherry was ruled by the **French** — the Portuguese were driven out via **Operation Vijay (1961)**.

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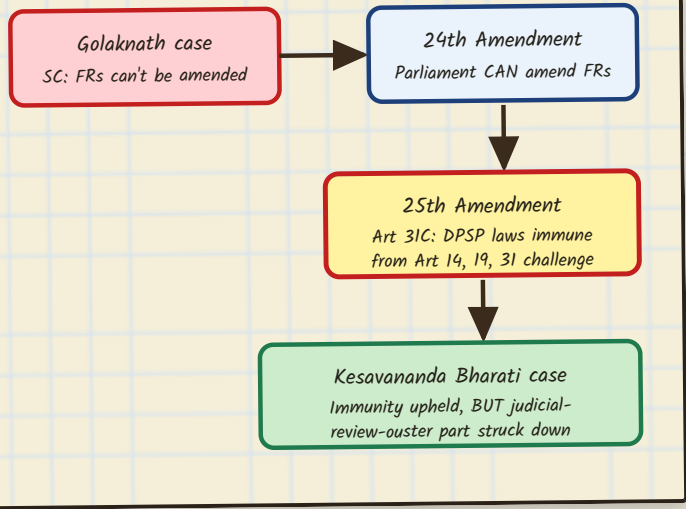
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AMENDMENTS 15-26: COURTS, RIGHTS + RULERS

Amendment	Key Change
15th	Raised the maximum retirement age of High Court judges from 60 to 62 (Supreme Court judges retire at 65, for comparison)
21st	Added Sindhi to the Eighth Schedule — the first language added after the original 14; the list would eventually reach 22 languages
24th	Reaction to the Golaknath case — affirmed Parliament's power to amend any Fundamental Right; made the President's assent to a Constitution Amendment Bill mandatory
25th (1971)	Added Article 31C — laws implementing DPSPs would not be void for violating Articles 14, 19, or 31; also tried to bar judicial review of such laws
26th (1971)	Abolished the Privy Purse

🧠 Fig 4: Golaknath → 24th → 25th →

Kesavananda Bharati



✗ Common Mistake

Article 31C's DPSP-immunity clause and its judicial-review-ouster clause are **two different things** — the Supreme Court in **Kesavananda Bharati** upheld the first but struck down the second.



📖 What was the Privy Purse? (tap to expand) ▼

🎯 Exam Tip

Don't confuse the **26th Amendment** (Privy Purse abolished) with the **19th Amendment of 1966** (Election Tribunals abolished) — a very common mix-up in competitive exams (see Page 5).



Memory Trick

1st Amendment = land reforms protected via the 9th Schedule; **24th & 25th Amendments** = Parliament pushing back on the judiciary over Fundamental Rights.

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SIKKIM, EMERGENCY + THE "MINI-CONSTITUTION"

Sikkim's Journey

Amendment	Key Change
35th (1974)	Gave Sikkim the status of an "Associate State" via new Article 2A (previously ruled by the Chogyal Dynasty)
36th	Made Sikkim a full-fledged state , incorporated into the Indian Union; Article 2A removed (no longer needed)
19th (1966)	Abolished the Election Tribunals

❌ Common Mistake

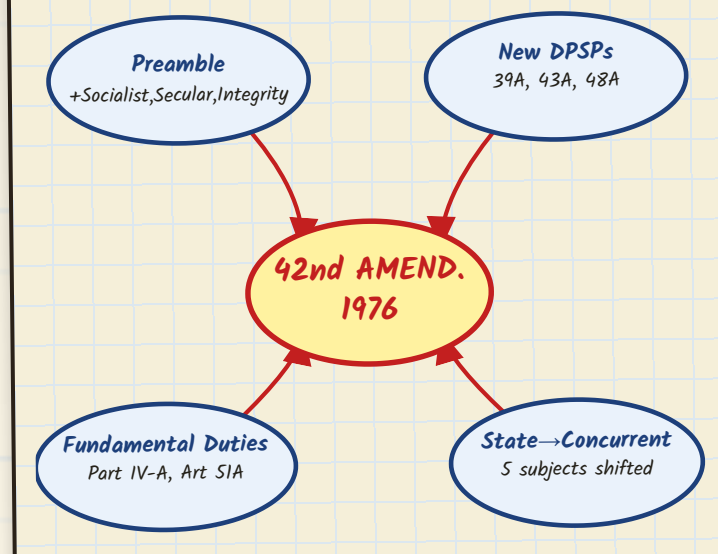
A frequently-confused exam question: "What was removed by the 19th Amendment?" The correct answer is **Election Tribunals** — *not* the Privy Purse (that was the **26th Amendment**).

The Emergency (1975) & the 42nd Amendment – "Mini-Constitution"

Indira Gandhi declared a National Emergency in **1975** on the ground of "internal disturbance", without consulting her own Cabinet, directing President **Fakhruddin Ali Ahmed** to impose it, and jailing many opposition politicians. The **42nd Amendment (1976)** that followed made so many changes it is called a "mini-Constitution."

📄 The 42nd Amendment is remembered as a "mini-Constitution" for its sheer scale of changes.

Fig 5: The 42nd Amendment – A Mini-Constitution



All the Changes the 42nd Amendment Made

- Added three words to the Preamble: **Socialist, Secular, Integrity**
- Added new DPSPs: **Article 39A** (free legal aid to the poor), **Article 43A** (workers' participation in management of industries), **Article 48A** (protection of environment)
- Added **Fundamental Duties** for the first time, in **Part IV-A, Article 51A**
- Made the President **bound by Cabinet advice** under Article 74 — he could not ask for reconsideration
- Gave judicial powers to **Administrative Tribunals**; added **Part XIV-A** for tribunal matters (central government employees' disputes, and other matters)
- Tried to extend Article 31C's immunity to cover all DPSPs (not just 39(b)/(c)) — this extension was later struck down by the Supreme Court
- Shifted subjects from the **State List to the Concurrent List**: Education, Forests, Weights and Measures, Administration of Justice, Protection of Wild Animals
- Union List subjects increased from 97 to 100; State List decreased from 66 to 61; Concurrent List subjects increased from 47 (final count not detailed in the lecture)

The 44th Amendment — Correcting the 42nd

- Made the Cabinet's advice to the President **returnable once** for reconsideration — binding only after reconsideration
- **Restored** the Fundamental Rights that had been curtailed during the Emergency
- Removed **Right to Property** from Part III (Fundamental Rights), moving it to **Article 300A** in Part XII as a mere legal right — enforceable only via a **High Court** writ, not the Supreme Court
- Added the word "**Cabinet**" into the Constitution's text for the first time
- Declaring a National Emergency now needs a special majority in Parliament, not a simple majority
- Replaced the ground "**internal disturbance**" with "**armed rebellion**" under Article 352

Exam Tip

This is exactly why the High Court's writ jurisdiction is **wider** than the Supreme Court's — legal rights (like the post-44th Right to Property) can only be enforced by a High



Memory Trick

42nd Amendment = Parliament/Executive gains more power (Emergency era); 44th Amendment = course-correction, restoring checks and balances.



52ND TO 106TH – THE ANTI-DEFECTION LAW ONWARDS

52nd Amendment (1985) – Anti-Defection Law

Added the **Tenth Schedule**, dealing with disqualification on grounds of defection. It applies when:

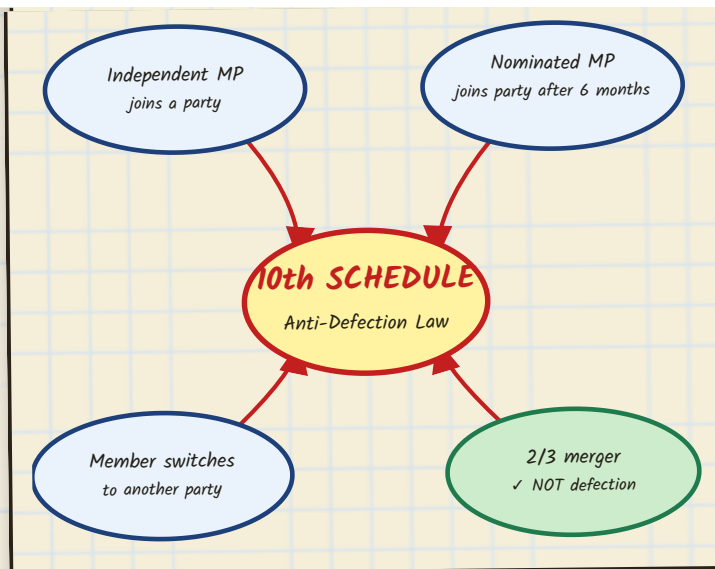
- An **independent** member (contested without a party) joins a political party after being elected
- A **nominated member** (e.g., in the Rajya Sabha) joins a party after **six months**
- A member **leaves their party and joins another**



Exception: if **2/3 or more** of a party's members leave together, it's treated as a "**merger**," not a "split" — and a merger is not covered by the anti-defection law.



Fig 6: When Does the Anti-Defection Law Apply?



✗ Common Mistake

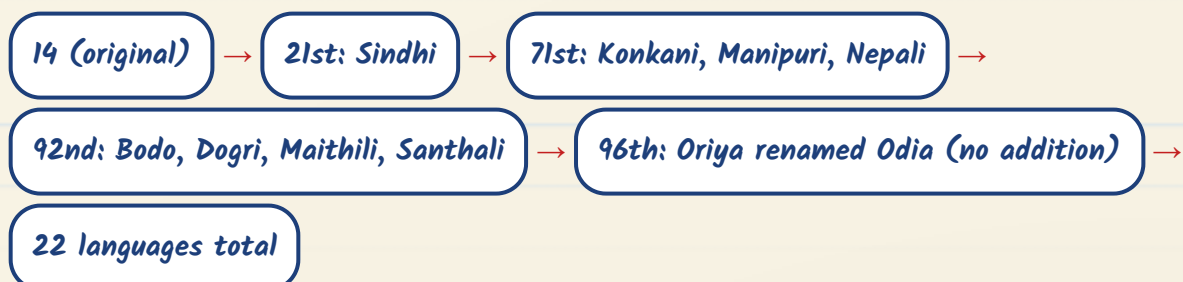
Don't assume every mass party exit counts as "defection" — if **2/3 or more** members leave together (like the Eknath Shinde example in Maharashtra), it's legally a **merger**, and the anti-defection law does not apply.

Master List – Key Amendments (52nd Onwards)

Amendment	Key Change
56th	Goa became a full-fledged state; Daman & Diu remained a Union Territory
61st	Reduced the voting age from 21 to 18
65th (1990)	Converted the single Special Officer for SCs/STs into a multi-member National Commission for SCs & STs
89th (2003)	Split the joint commission into Article 338 (SCs) and Article 338A (STs) ; the SC commission also looks after Anglo-Indians
102nd (2018)	Gave the Backward Classes Commission (earlier only a statutory body) constitutional status under Article 338B
69th (1991)	Gave Delhi special status as the National Capital Territory with a Legislative Assembly; added Articles 239AA & 239AB ; Union can legislate on Land, Police, Public Order for Delhi
73rd	Added Part IX (Panchayati Raj) , Articles 243–243O, and the 11th Schedule (29 subjects); made Panchayati Raj mandatory in all states
74th	Added Part IX-A (Municipalities) , Articles 243P–243ZG, and the 12th Schedule

86th (2002)	Added Article 21A — free education a Fundamental Right, ages 6–14; added duty on parents under Art 51A; changed Article 45 (DPSP) to cover early childhood care, ages 0–6
91st (2003)	Council of Ministers capped at 15% of House strength (Art 75(1)(a) Union / Art 164(1)(a) States, min. 12 in states; Delhi capped at 10% via the 69th); a member disqualified for defection also can't become a minister (Art 75(1)(b))
93rd	Provided reservation in admissions to private unaided educational institutions
95th (2009)	Extended SC/ST/Anglo-Indian reservation in Lok Sabha & State Assemblies by 10 years (Anglo-Indian reservation not extended further afterward)
97th	Gave Cooperative Societies constitutional status; added Part IX-B (Art 243ZH–243ZT), Art 19(1)(c), and DPSP Article 43B
99th	Replaced the Collegium system with the NJAC — later declared unconstitutional in the Fourth Judges Case ; Collegium restored
100th (2015)	Implemented the India–Bangladesh Land Boundary Agreement — exchange of enclaves
101st	Enabled introduction of GST — needed ratification by at least half the states (affected states' tax share)
103rd	Provided 10% reservation for Economically Weaker Sections (EWS)
104th	Abolished nomination of Anglo-Indian members to the Lok Sabha and State Assemblies (Articles 331 & 333)
105th	Gave state governments the power to identify and maintain their own list of socially & educationally backward classes
106th (2023)	Reserved 33% of seats for women in the Lok Sabha & State Legislative Assemblies (not Rajya Sabha); pending the Delimitation Commission's report before implementation

abc The Eighth Schedule — Language Additions





Memory Trick

Language additions in order: **Sindhi (21st)** → **Konkani-Nepali-Manipuri, "KNM" (71st)** → **Bodo-Dogri-Maithili-Santhal (92nd)** — takes the count from 14 to 22.



Exam Tip

Women's reservation already exists in local bodies (Panchayats & Municipal Corporations, via the 73rd/74th Amendments) — the **106th Amendment** extends this idea to the Lok Sabha and State Assemblies, but only *after* implementation, which is still pending.



Not a Constitutional Amendment — the Waqf Law Change (tap to expand) ▼



Exam-Ready Summary

- **Amendment procedure:** Part XX, Article 368 — borrowed from South Africa
- **Who can amend:** only Parliament, never a State Legislature
- **Two types under Art 368:** Special majority; Special majority + state ratification ($\geq$ half the states)
- **Outside Art 368:** simple-majority "flexible" provisions (e.g., citizenship rules, new states)
- **Unique CAB rules:** no joint sitting, no prior Presidential recommendation, mandatory Presidential assent
- **Most amended era:** 42nd (1976) "mini-Constitution" during the Emergency, corrected by the 44th (1978)
- **Most recent:** 106th Amendment (2023) — 33% women's reservation, pending implementation



Exam Tip

If an MCQ names an amendment number and a change, check the era first: 1st–14th = early Republic/territory; 15th–26th = courts/rights tug-of-war; 35th–44th = Sikkim/Emergency; 52nd onward = defection law to the present day.



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